

TITLE 477 - MEDICAID ELIGIBILITY

CHAPTER 13-000 - MEDICAID BENEFITS PROVIDED IN ERROR

13-001 MEDICAID BENEFITS PROVIDED IN ERROR: If a client has received Medicaid benefits through misrepresentation or fraud, including because of erroneously reported income, changes in income, or changes in private health insurance premiums, the client is required to repay those benefits.

13-001.01 Fraud or Abuse: If there is reason to believe that a client has defrauded or abused the Medicaid program, the Department shall refer the case to the Special Investigation Unit (SIU) to conduct a full investigation of the claim. Once a case has been referred to SIU, no additional action shall be taken with regard to the prosecution of the suspected fraud, except in accordance with instructions or approval by SIU.

13-001.02 Repayment of Medicaid Benefits Provided in Error: A client who has received Medicaid benefits for which s/he was not eligible due to an error by the Department may choose to make restitution to the Department.

